

1 ENGROSSED HOUSE
2 BILL NO. 3720

By: Hall, Sneed, and Waldron of
the House

3 and

4 McIntosh of the Senate
5

6 An Act relating to agriculture; amending 2 O.S. 2021,
7 Sections 5-4.1, 5-4.2, 5-4.3, as amended by Section
8 1, Chapter 16, O.S.L. 2024, 5-4.4, 5-4.5, and 5-4.6
9 (2 O.S. Supp. 2025, Section 5-4.3), which relate to
10 the Homemade Food Freedom Act; renaming the Homemade
11 Food Freedom Act to the Local Food Freedom Act;
12 modifying definitions; updating statutory language;
13 and providing an effective date.

14 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

15 SECTION 1. AMENDATORY 2 O.S. 2021, Section 5-4.1, is
16 amended to read as follows:

17 Section 5-4.1. This act shall be known and may be cited as the
18 "~~Homemade~~ Local Food Freedom Act".

19 SECTION 2. AMENDATORY 2 O.S. 2021, Section 5-4.2, is
20 amended to read as follows:

21 Section 5-4.2. As used in the ~~Homemade~~ Local Food Freedom Act:

22 1. "~~Home~~ Local food establishment" shall mean a business at any
23 location, including on the premises of a residence but excluding
24 restaurants, in which ~~homemade~~ local food products are created for
sale or resale if the business has gross annual sales of prepared
food of less than ~~Seventy-five Thousand Dollars (\$75,000.00)~~ One

1 Million Five Hundred Thousand Dollars (\$1,500,000.00). Gross annual
2 sales includes all sales of prepared food produced by the business
3 at any location;

4 2. "Delivered" shall mean transferred to the customer, either
5 immediately upon sale or at a time thereafter;

6 3. "~~Homemade~~ Local food product" shall mean food, including a
7 beverage, which is produced and, if packaged, packaged at a
8 ~~residence~~ local food establishment; provided, however, ~~homemade~~
9 local food product shall not mean alcoholic beverages or
10 unpasteurized milk or cannabis or marijuana products;

11 4. "Non-time- or -temperature-controlled for safety" shall mean
12 food that does not require time or temperature control for safety to
13 limit the rapid and progressive growth of infectious or toxigenic
14 microorganisms, including foods that have a pH level of four and
15 six-tenths (4.6) or below or a water activity (aw) value of eighty-
16 five one-hundredths (0.85) or less;

17 5. "Time- or temperature-controlled for safety" shall mean a
18 food that requires time or temperature control for safety to limit
19 infectious or toxigenic microorganisms and is in a form capable of
20 supporting rapid and progressive growth of infectious or toxigenic
21 microorganisms; provided, however, time- or temperature-controlled
22 for safety shall not include foods that have a pH level of four and
23 six-tenths (4.6) or below or a water activity (aw) value of eighty-
24 five one-hundredths (0.85) or less;

1 6. "Produce" shall mean to prepare a food product by cooking,
2 baking, drying, mixing, cutting, canning, fermenting, preserving,
3 dehydrating, growing, raising or other process; and

4 7. "Producer" shall mean the person or business entity who
5 produces a ~~homemade~~ local food product in a ~~home~~ local food
6 establishment.

7 SECTION 3. AMENDATORY 2 O.S. 2021, Section 5-4.3, as
8 amended by Section 1, Chapter 16, O.S.L. 2024 (2 O.S. Supp. 2025,
9 Section 5-4.3), is amended to read as follows:

10 Section 5-4.3. A. The production and sale of ~~homemade~~ local
11 food products that meet the following conditions shall be exempt
12 from all licensing and other requirements of the State Department of
13 Health and the Oklahoma Department of Agriculture, Food, and
14 Forestry:

15 1. Non-time- or -temperature-controlled-for-safety ~~homemade~~
16 local food products shall be sold:

- 17 a. by the producer directly to the consumer, either in
18 person or by remote means, including, but not limited
19 to, the Internet or telephone, or
20 b. by a producer's designated agent or a third-party
21 vendor, such as a retail or grocery store, farm, farm
22 stand, farmers market, membership-based buying club,
23 craft fair or flea market, to the consumer; provided,
24 the third-party vendor displays a placard where

1 ~~homemade~~ local food products are displayed for sale
2 with the following disclosure: "This product was
3 produced in a ~~private residence~~ facility that is
4 exempt from government licensing and inspection. This
5 product may contain allergens.";

6 2. Non-time- or -temperature-controlled-for-safety ~~homemade~~
7 local food products shall be delivered:

- 8 a. by the producer or producer's designated agent
9 directly to the consumer or third-party vendor, or
10 b. by a third-party vendor or a third-party carrier, such
11 as a parcel delivery service, to the consumer or a
12 third-party vendor;

13 3. Time- or temperature-controlled-for-safety ~~homemade~~ local
14 food products shall be sold by the producer directly to the
15 consumer, either in person or by remote means, including, but not
16 limited to, the Internet or telephone;

17 4. Time- or temperature-controlled-for-safety ~~homemade~~ local
18 food products shall be delivered by the producer directly to the
19 consumer;

20 5. Before a producer produces and sells time- or temperature-
21 controlled-for-safety ~~homemade~~ local food products, ~~the producer~~ any
22 person producing the local food shall complete and pass food safety
23 training from a list of providers, including the ServSafe Food
24 Handler Training, approved by the Oklahoma Department of

1 Agriculture, Food, and Forestry. The food safety training shall be
2 available to complete online and shall not exceed eight (8) hours in
3 length. The Oklahoma Department of Agriculture, Food, and Forestry
4 shall make the list of approved training available on its website by
5 November 1, 2021;

6 6. The following information shall be provided to the consumer
7 in the format required by subsection B of this section:

- 8 a. the name and phone number of the producer,
- 9 b. the physical address where the product was produced,
- 10 c. a description of the ~~homemade~~ local food product,
- 11 d. the ingredients of the ~~homemade~~ local food product in
12 descending order of proportion,
- 13 e. a statement indicating the presence of any of the
14 eight most common allergens, including milk, eggs,
15 peanuts, tree nuts, soy and wheat, and
- 16 f. legible print stating, "This product was produced in a
17 ~~private residence~~ facility that is exempt from
18 government licensing and inspection.";

19 7. If the ~~homemade~~ local food product is packaged and
20 distributed in interstate commerce, it shall also be sold and
21 labeled in accordance with federal law; ~~and~~

22 8. ~~Homemade~~ Local food products shall not contain seafood or
23 meat, meat by-products or meat food products as defined by Section
24 301.2 of Title 9 of the Code of Federal Regulations or poultry,

1 poultry products or poultry food products as defined for purposes of
2 the federal Poultry Products Inspection Act; and

3 9. The producer complies with all local zoning and building
4 code laws.

5 B. The information required by paragraph 6 of subsection A of
6 this section shall be provided in a legible format of at least 10-
7 point font, in the following manner:

8 1. On a label affixed to the package if the ~~homemade~~ local food
9 product is packaged;

10 2. On a label affixed to a container, if the ~~homemade~~ local
11 food product is offered for sale from a bulk container directly to
12 the consumer;

13 3. On a placard displayed at the point of sale, and on a card
14 or other item that is made available to the consumer and is readily
15 carriable if the ~~homemade~~ local food product is not packaged; and

16 4. Displayed on the webpage from which the ~~homemade~~ local food
17 product is offered for sale if it is sold on the Internet; provided,
18 that each item sold over the Internet shall be properly labeled or
19 shall have a label included in the shipping container.

20 C. A ~~homemade~~ local food product producer may obtain a
21 registration number upon the payment of an annual fee of Fifteen
22 Dollars (\$15.00) to the Oklahoma Department of Agriculture, Food,
23 and Forestry that is good for one (1) year from the date of its
24 issue. The assigned registration number may be used on product

1 labels instead of the producer's name, phone number, and the
2 physical address of the location where the ~~homemade~~ local food
3 product was produced.

4 SECTION 4. AMENDATORY 2 O.S. 2021, Section 5-4.4, is
5 amended to read as follows:

6 Section 5-4.4. Nothing in the ~~Homemade~~ Local Food Freedom Act
7 shall be construed to impede the State Department of Health in any
8 investigation of a reported foodborne illness. Upon receipt of a
9 consumer complaint, the Oklahoma Department of Agriculture, Food,
10 and Forestry shall have the authority to request proof of completion
11 of the food safety training, verify a producer's gross sales, and
12 ensure a producer has complied with the act's labeling and delivery
13 requirements. The Oklahoma Department of Agriculture, Food, and
14 Forestry may fine a producer who violates this act in accordance
15 with Section 5-4.5 of this title.

16 SECTION 5. AMENDATORY 2 O.S. 2021, Section 5-4.5, is
17 amended to read as follows:

18 Section 5-4.5. Violation of the ~~Homemade~~ Local Food Freedom Act
19 shall be punishable by a fine not exceeding Three Hundred Dollars
20 (\$300.00).

21 SECTION 6. AMENDATORY 2 O.S. 2021, Section 5-4.6, is
22 amended to read as follows:

23 Section 5-4.6. Nothing in the ~~Homemade~~ Local Food Freedom Act
24 shall be construed to prevent counties from enacting ordinances

1 regulating the operation of ~~home~~ local food establishments, provided
2 such ordinances do not conflict with the provisions of the ~~Homemade~~
3 Local Food Freedom Act or impede or restrict the sale of ~~homemade~~
4 local food products in compliance with the law.

5 SECTION 7. This act shall become effective November 1, 2026.

6 Passed the House of Representatives the 10th day of March, 2026.

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8 _____
9 Presiding Officer of the House
10 of Representatives

11 Passed the Senate the ____ day of _____, 2026.

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13 _____
14 Presiding Officer of the Senate
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